

CRIMINAL LAW

Friday, Sept. 11
(Lecture 4)

*This slide will help you
prepare for today's
class.*

- We pick up where we left off, on the topic of sentencing Indigenous offenders. Please be prepared to discuss *Ipeelee*.
- We will then turn to our next topic: sentencing Black offenders. Please be prepared to discuss *R. v. Morris*.
- Finally, if we have time, we will make a start on our next unit, “*The Criminal Justice Process*.” Please be prepared to ask any questions you may have about the assigned materials associated with that unit.

CRIMINAL LAW

**Friday, September 11
(Lecture 4)**

Scheduling Updates

- **Monday, October 5, 12:30-2:20PM: DF Session (IKB 2002)**
- **Monday, November 9, 12:30-2:00PM: “Anti-Black Racism and the Criminal Legal System”** (1L plenary session co-hosted with BLSA, with Justice Faisal Mirza & Annamaria Enenajor) (location TBC)

Objectives for Week 2

8. Continue to think about sentencing in relation to our “key themes.”
9. **Engage in critical analysis about efforts to develop a distinct approach to sentencing Black offenders, including the relationship between those efforts and the *Gladue* framework.**

Other Sentencing Principles

s. 718.2 [...]

(e) all available sanctions, other than imprisonment, that are reasonable in the circumstances and consistent with the harm done to victims or to the community should be considered for all offenders, with particular attention to the circumstances of Aboriginal offenders.

Sentencing Black Offenders

R v Morris (trial decision)

R v Morris, 2018 ONSC 5186 (per Nakatsuru J.)

“In my opinion, we have to get past this idea of waiting for the perfect person to be lenient. Waiting for the most benevolent soul by the standards of the privileged and the few, before we decide to extend consideration for leniency. For we may be waiting a long time. The young man who makes the choice to pick up a loaded illegal handgun will not likely be a product of a private school upbringing who has the security of falling back upon upper middle class family resources. Rather, he is likely to be a product of oppression, despair, and disadvantage. Likely he is someone who cannot turn his life around on a dime even if he wanted to. In short, he is you, Mr. Morris.

So in the final analysis, what makes this sentencing different from other cases where leniency was not given is that I have been given a wealth of information to sentence you. Information that can be used to take further steps to deal with the over-incarceration of Black people in this country.” (paras. 84-85)

Sentencing Black Offenders

R v Morris (appeal decision)

“For the reasons set out below, we come to the following conclusions:

- The trial judge’s task in sentencing is to impose a just sentence tailored to the individual offender and the specific offence in accordance with the principles and objectives laid out in Part XXIII of the *Criminal Code*;
- Social context evidence relating to the offender’s life experiences may be used where relevant to mitigate the offender’s degree of responsibility for the offence and/or to assist in the blending of the principles and objectives of sentencing to achieve a sentence which best serves the purposes of sentencing as described in s. 718;
- The gravity or seriousness of an offence is determined by its normative wrongfulness and the harm posed or caused by that conduct in the circumstances in which the conduct occurred. Accordingly, unlike when assessing the offender’s degree of personal responsibility, an offender’s experience with anti-Black racism does not impact on the seriousness or gravity of the offence;

Sentencing Black Offenders

R v Morris (appeal decision cont'd)

[...]

- Courts may acquire relevant social context evidence through the proper application of judicial notice or as social context evidence describing the existence, causes and impact of anti-Black racism in Canadian society, and the specific effect of anti-Black racism on the offender;
- Consistent with the rules of admissibility, a generous gateway for the admission of objective and balanced social context evidence should be provided;
- The *Gladue* methodology does not apply to Black offenders. However, that jurisprudence can, in some respects, inform the approach to be taken when assessing the impact of anti-Black racism on sentencing.”

Sentencing Black Offenders

R v Anderson, 2021 NSCA 62

“[118] The “method” employed for sentencing African Nova Scotian offenders should carefully consider the systemic and background factors detailed in an IRCA. It may amount to an error of law for a sentencing judge to ignore or fail to inquire into these factors. A judge does not have to be satisfied a causal link has been established “between the systemic and background factors and commission of the offence...” These principles parallel the requirements in law established by the Supreme Court of Canada in relation to *Gladue* factors in the sentencing of Indigenous offenders. As with Indigenous offenders, while an African Nova Scotian offender can decide not to request an IRCA, a sentencing judge cannot preclude comparable information being offered, or fail to consider an offender’s background and circumstances in relation to the systemic factors of racism and marginalization. To do so may amount to an error of law.”

(per Derrick JA)

Sentencing Black Offenders

Federal data (2022)

“Accused Persons

- In 2015/2016, Black people (adults and youth) were twice as likely to be accused in comparison to the general population; Black people accounted for 6% of all accused, while representing only 3% of the Canadian population at the time. ([Justice Canada, 2023](#))

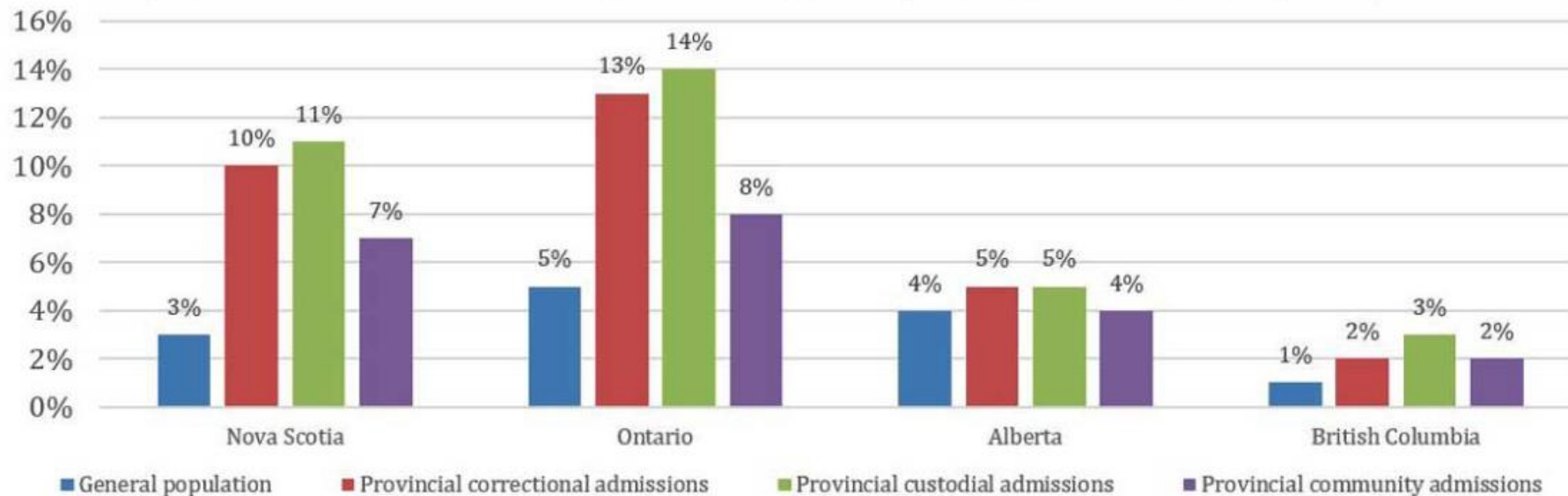
Incarcerated People

- In 2020/2021, despite representing about 4% of adults in Canada, Black people accounted for 9% of the total offender population in federal corrections. ([Justice Canada, 2022](#))
- Black people have overall lower rates of reoffending and lower returns to custody. The majority of Black offenders (85.8%) are not re-admitted to federal custody within 5 years following the expiration of their sentence. ([Correctional Service Canada, 2022](#))
- Despite the lower rates of reoffending and returning to custody, Black people are more likely to be assessed as higher risk, low motivation, and low reintegration potential. ([Office of the Correctional Investigator, 2022](#))”

Sentencing Black Offenders

Provincial data (2020-2021)

Figure 3: Representation of Black adults in the general population and admissions to provincial correctional services, Nova Scotia, Ontario, Alberta, British Columbia, 2020/21



Source: Government of Canada

Sentencing Black Offenders

Provincial data (2023 / 2024)

- Reporting available for: Nova Scotia, Ontario, Alberta, BC
- “In 2023/2024, Black persons in custody from the four reporting provinces accounted for **12.8% of the custodial population on an average day**, while they made up **3.3% of the general adult population.**”
- “In 2023/2024, the overall Black overrepresentation index score was 3.0, indicating that **Black adults were incarcerated at three times the rate of white adults.**”

Source: Statistics Canada

A short reflection...

Think about our units on sentencing Indigenous and Black offenders...

- **What is most surprising?**
- **What is most disappointing?**
- **What is most encouraging?**

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

ARSON FOR FRAUDULENT PURPOSE

435 (1) Every person who, with intent to defraud any other person, causes damage by fire or explosion to property, whether or not that person owns, in whole or in part, the property, is guilty of

- (a)** an indictable offence and liable to imprisonment for a term of not more than 10 years; or
- (b)** an offence punishable on summary conviction.

Objectives for Week 2 (continued)

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12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

The Criminal Justice Process in Ontario

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
- 6. The Accused is Arraigned**
- 7. Resolution Discussion or Pre-Trial Meeting May Take Place**
- 8. A Preliminary Inquiry May Take Place**
- 9. The Trial Takes Place**
- 10. The Verdict is Issued**
- 11. The Sentencing Takes Place**
- 12. An Appeal May Take Place**
- 13. The Offender Serves Their Sentence**
- 14. The Offender May Seek Parole**
- 15. The Offender May Seek a Record Suspension or Clemency**

The Criminal Justice Process in Ontario

Police Discretion

1. **A Crime is Investigated**
2. **The Suspect is Compelled to Attend Court**
3. **The Charge is Laid**
4. The Charge is Processed
5. The Bail Hearing Takes Place
6. The Accused is Arraigned
7. Resolution Discussion or Pre-Trial Meeting May Take Place
8. A Preliminary Inquiry May Take Place
9. The Trial Takes Place
10. The Verdict is Issued
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14. The Offender May Seek Parole
15. The Offender May Seek a Record Suspension or Clemency

The Criminal Justice Process in Ontario

Crown (Prosecutorial) Discretion

1. A Crime is Investigated
2. The Suspect is Compelled to Attend Court
3. The Charge is Laid
4. The Charge is Processed
5. The Bail Hearing Takes Place
6. The Accused is Arraigned
7. Resolution Discussion or Pre-Trial Meeting May Take Place
8. A Preliminary Inquiry May Take Place
9. The Trial Takes Place
10. The Verdict is Issued
11. The Sentencing Takes Place
12. An Appeal May Take Place
13. The Offender Serves Their Sentence
14. The Offender May Seek Parole
15. The Offender May Seek a Record Suspension or Clemency

The Criminal Justice Process in Ontario

(Judge & Jury)

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
- 6. The Accused is Arraigned**
- 7. Resolution Discussion or Pre-Trial Meeting May Take Place**
- 8. A Preliminary Inquiry May Take Place**
- 9. The Trial Takes Place [judge manages]**
- 10. The Verdict is Issued [judge OR jury]**
- 11. The Sentencing Takes Place [judge decides]**
- 12. An Appeal May Take Place**
- 13. The Offender Serves Their Sentence**
- 14. The Offender May Seek Parole**
- 15. The Offender May Seek a Record Suspension or Clemency**

The Criminal Justice Process in Ontario

(Post-Conviction)

- 1. A Crime is Investigated**
- 2. The Suspect is Compelled to Attend Court**
- 3. The Charge is Laid**
- 4. The Charge is Processed**
- 5. The Bail Hearing Takes Place**
- 6. The Accused is Arraigned**
- 7. Resolution Discussion or Pre-Trial Meeting May Take Place**
- 8. A Preliminary Inquiry May Take Place**
- 9. The Trial Takes Place**
- 10. The Verdict is Issued**
- 11. The Sentencing Takes Place**
- 12. An Appeal May Take Place**
- 13. The Offender Serves Their Sentence**
- 14. The Offender May Seek Parole**
- 15. The Offender May Seek a Record Suspension or Clemency**

“Core” Prosecutorial Discretion

- **Prosecute a charge laid by police (recall: can proceed, withdraw, seek a different charge)**
- **Stay the proceedings [terminate the case]**
- **Pursue a dangerous offender application**
- **Recommend a particular sentence**
- **Initiate an appeal**
- **Proceed summarily or by indictment (hybrid)**
- **Negotiate a plea-bargain**
- **Etc.**

Crown Prosecution Manual

“A charge may only proceed if there a reasonable prospect of conviction; and it is in the public interest.”

Boucher v The Queen (1954)

“[T]he purpose of a criminal prosecution is not to obtain a conviction; it is to lay before a jury [or judge] what the Crown considers to be credible evidence relevant to what is alleged to be a crime.”

“The position held by counsel for the Crown is not that of a lawyer in civil litigation. His functions are quasi-judicial. His duty is not so much to obtain a conviction as to assist the judge and the jury in ensuring that the fullest possible justice is done.” (Taschereau J., dissenting but not on this point)

Plea Bargain

(plea agreement/negotiated settlement/settlement agreement)

“[A]n agreement by the accused to plead guilty in return for the prosecutor's agreeing to take or refrain from taking a particular course of action”

(Law Reform Commission of Canada)

Plea Bargain

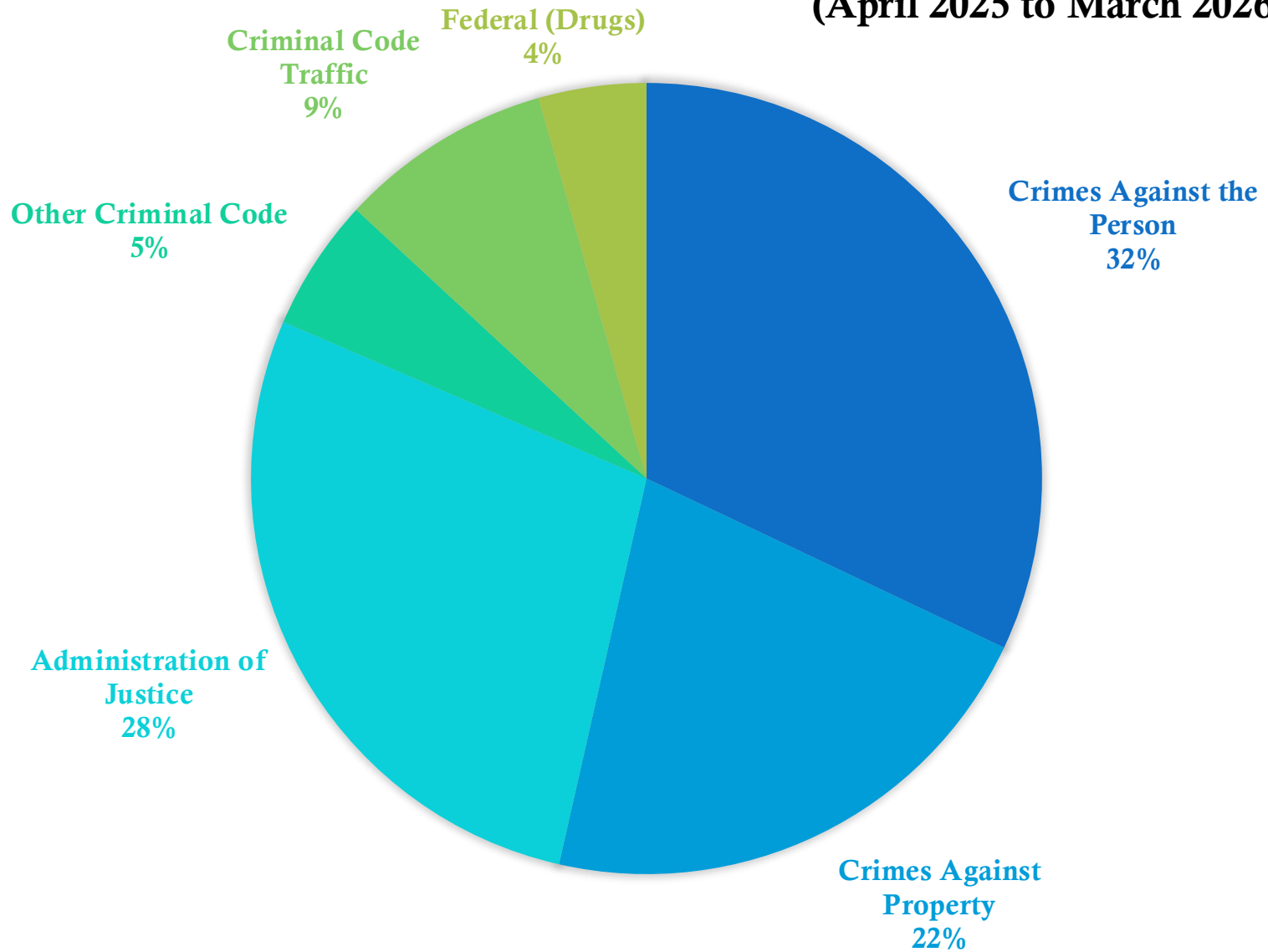
- **Charge bargain**: prosecutor agrees to reduce/drop charges and allow the accused to plead guilty to fewer/less serious charges
- **Sentence bargain**: prosecutor agrees to take a particular course of action at the sentencing stage

Trial Rates

Ontario Court of Justice (April 2025 to March 2026):

- 249,148 cases received
 - *[Case = all charges on information for each single accused]*
- 125,793 withdrawn/stayed before trial
 - 85,085 resolved by guilty plea before trial
- 10,622 withdrawn at trial
 - 7,996 guilty plea at trial
- 282 cases disposed of following trial
- Trial rate: 3.7%

Ontario Court of Justice (April 2025 to March 2026)



Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. **Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.**

Ontario Human Rights Commission, “A Disparate Impact”

- **Charge rate** 3.9x higher for Black people than White people
 - Less likely to result in conviction
- 42.5% people involved in obstruct justice charges
- 35.2% people involved in “out-of-sight” driving charges
 - Compare 8.8% Toronto population (2016 data)

Objectives for Week 2 (continued)

10. Start to familiarize yourself with the structure of the *Criminal Code* and of individual criminal offences.
11. Define plea bargaining (i.e., resolution discussions) and consider how that practice relates to prosecutorial discretion.
12. Explain, in general terms, some of the procedural rules that informally allow anti-Black racism and other forms of discrimination to influence criminal prosecutions.

Objectives for Week 3

- 13. Develop some familiarity with the theory and structure of the adversarial criminal trial and reflect critically on the ways in which the adversarial paradigm is in tension with Indigenous perspectives.**

The Rule of Law

- *A loose and contested concept...*
- **People are ruled by the law, not by people**
- **Laws are consistent: no-one is above the law; everyone is equal under the law**
- **Laws are known, transparent: no secret or retroactive laws**

DM Paciocco, “Understanding the Accusatorial [i.e., Adversarial] System”

Key principles:

- **Specific allegation**
- **Presumption of innocence**
- **Principle of full answer and defence**
- **No conscription (included the right to silence)**
- **Prosecutorial independence**
- **Judicial independence and impartiality**
- **Open court principle**

“Reflect critically on the ways in which the adversarial paradigm is in tension with Indigenous perspectives...”

““[The adversarial system] is a confrontational process that does not appeal to those who prefer restorative processes in which the parties are encouraged to understand the positions of the opposing party and find accommodation”.

(D.M. Paciocco, “Understanding the Accusatorial System”)

Monture-Okanee

“There is no such thing as an Aboriginal court. Courts are, by their very nature, adversarial. This was not the historic process whereby disputes and disturbances in our communities were resolved. [...] [T]he conversation always ends with the establishment of small pilot projects, diversion initiatives, sentencing circles and the possibility, someday, of Aboriginal courts. [...] These kinds of initiatives are both inadequate and insufficient if the goal of our joint efforts is to ameliorate the existing oppression and discrimination that Aboriginal people face.”

Patricia Monture-Okanee, “Thinking About Aboriginal Justice: Myths and Revolution”

D. Milward, *Aboriginal Justice and the Charter: Realizing a Culturally Sensitive Interpretation of Legal Rights*

- “[R]estorative processes are designed to promote relationship reparation and community harmony. The mere presence of adversarial procedures is seen as a threat to this pursuit” (142).
- “Cross-examination can be problematic for many Aboriginal societies in that it invites the commission of cultural *faux pas*.” (144)
 - “To subject Elders to intensive questioning demonstrates an ignorance and contempt for the knowledge they have preserved, and a disrespect and disdain for the structures and the culture they represent” (quoting John Borrows).

Objectives for Week 2 (continued)

15. Explain the presumption of innocence, including its common law and constitutional statuses, and its relationship to the proof beyond a reasonable doubt standard.
16. Describe how the proof beyond a reasonable doubt standard should be explained to juries.
17. Apply the *W.(D.)* framework and explain its purpose.

Woolmington v. D.P.P.

[1935] A.C. 463 (H.L.)

“Throughout the web of the English Criminal Law one golden thread is always to be seen, that it is the duty of the prosecution to prove the prisoners’ guilt [...]

If, at the end of and on the whole of the case, there is a reasonable doubt, created by the evidence given by either the prosecution or the prisoner [...] the prosecution has not made out the case and the prisoner is entitled to an acquittal.

No matter what the charge or where the trial, the principle that the prosecution must prove the guilt of the prisoner is part of the common law of England and no attempt to whittle it down can be entertained.”

Sources of Law “Foodchain”

CONSTITUTION

(including *Charter*)



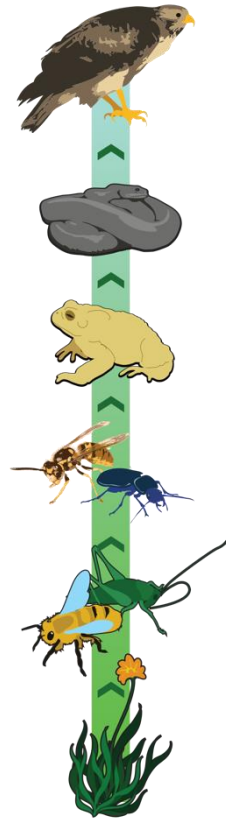
STATUTE

(*Criminal Code, Controlled Drugs and Substances Act, etc.*)



COMMON LAW

(“precedent”)



The *Charter*

11. Any person charged with an offence has the right [...]
(d) to be presumed innocent until proven guilty according to law in a fair and public hearing by an independent and impartial tribunal

R. v. Oakes

“Following this finding [that Mr. Oakes was in possession of a narcotic], Mr. Oakes brought a motion to challenge the constitutional validity of s. 8 of the *Narcotic Control Act***, which he maintained imposes a burden on an accused to prove that he or she was not in possession for the purpose of trafficking. He argued that s. 8 violates the presumption of innocence contained in s. 11(d) of the *Charter*.”

*** Accused found in possession → Accused must prove on BOP it was not for purposes of trafficking.*

R. v. Oakes

- **Accused must be proven guilty beyond a reasonable doubt**
- **Prosecution bears the burden of proof**
- **Criminal prosecutions “must be carried out in accordance with lawful procedures and fairness”**

R. v. Lifchus

“When I use the words ‘proof beyond reasonable doubt’ I use those words in the ordinary, natural every day sense. There isn’t one of you who hasn’t said, gosh I’ve got a doubt about such and so. Perfectly every day word. There isn’t one of you who doesn’t have a notion of reasonable. That, too, is a perfectly ordinary concept.”

(Trial judge’s instructions, *Lifchus*)

R. v. Lifchus

- Reasonable doubt is not:
 - “An **imaginary or frivolous** doubt”; or
 - A doubt “based upon **sympathy or prejudice**”.
- Reasonable doubt is:
 - “Based on **reason and common sense**”; and
 - “Logically **derived from the evidence** or absence of evidence” (though may be hard to articulate)
- Crown need not prove guilt “to an absolute certainty”; but
- Crown must do more than prove that the accused is “probably guilty or likely guilty”

R. v. Starr

- Reasonable doubt “falls **much closer to absolute certainty than to proof on a balance of probabilities.**”
- “[S]omething **less than absolute certainty** is required, and [...] something **more than probable guilt** is required, in order for the jury to convict.”

Objectives for Week 2 (continued)

15. Explain the presumption of innocence, including its common law and constitutional statuses, and its relationship to the proof beyond a reasonable doubt standard.
16. Describe how the proof beyond a reasonable doubt standard should be explained to juries.
17. Apply the *W.(D.)* framework and explain its purpose.

The *W.(D.)* Formula

“.... *W.(D.)*. simply unpacks for the benefit of the lay jury what reasonable doubt means in the context of evaluating conflicting testimonial accounts. It alerts the jury to the ‘credibility contest’ error.”

(*R. v. S.(J.H.)*, S&C p. 93)

The (Revised) *W.(D.)* Formula

“First, if you **believe the [exculpatory] evidence** of the accused, obviously you must acquit.

Second, if you do not believe [all of] the testimony of the accused but **you are left in reasonable doubt by [any part of the accused’s testimony]**, you must acquit.

Third, even if you are not left in [reasonable] doubt by [any part of the accused’s testimony], you must [consider all] of the evidence which you do accept, **[and ask yourself whether that evidence proves] the guilt of the accused [beyond a reasonable doubt].”**

Aldea Accused & Conan Complainant

264.1 (1) Every one commits an offence who, in any manner, knowingly utters, conveys or causes any person to receive a threat

(a) to cause death or bodily harm to any person [...]

Conan testifies that his next-door neighbour, Aldea, brandished a rake at him and threatened to hit him with it during an argument about noise levels.

Aldea testifies that they had a polite conversation in which she agreed to lower her music; she denies threatening him.

Aldea Accused & Conan Complainant

- 1. We accept Aldea's exculpatory evidence.**
- 2. We are not sure whether to accept Aldea's exculpatory evidence.**
- 3. We reject Aldea's exculpatory evidence.**

Aldea, Conan & the *W.(D.)* Framework

We accept Aldea's exculpatory evidence.	First, if you believe the [exculpatory] evidence of the accused, obviously you must acquit.
We are not sure whether to accept Aldea's exculpatory evidence.	Second, if you do not believe [all of] the testimony of the accused but you are left in reasonable doubt by [any part of the accused's testimony], you must acquit.
We reject Aldea's exculpatory evidence.	Third, even if you are not left in [reasonable] doubt by [any part of the accused's testimony], you must [consider all] of the evidence which you do accept, [and ask yourself whether that evidence proves] the guilt of the accused [beyond a reasonable doubt].

Pop Quiz!

Because it is her word against Conan's and there is no other significant evidence, Aldea feels she must testify in her own defence to avoid being convicted of uttering threats.

What type of burden does this place on Aldea?

Objectives for Week 2 (continued)

- 17. Differentiate among legal burdens, evidentiary burdens, and tactical burdens.**
- 18. Explain and apply the air of reality test.**

Aldea Accused & Conan Complainant

Should we consider “defence of person”?

Conan testifies that his next-door neighbour, Aldea, brandished a rake at him and threatened to hit him with it during an argument about noise levels.

Aldea testifies that they had a polite conversation in which she agreed to lower her music; she denies threatening him.

Aldea Accused & Conan Complainant

Okay, should we consider “defence of person” now?

Conan testifies that his next-door neighbour, Aldea, brandished a rake at him and threatened to hit him with it during an argument about noise levels.

Aldea admits to this action but claims Conan was striding towards her quickly with his fist balled up, and she thought he would strike her.

The Air of Reality Test (1 / 3)

“The test is whether there is evidence on the record upon which a properly instructed jury acting reasonably could acquit.”

(R. v. Cinous)

The Air of Reality Test (2/3)

- **Identify all the evidence on the issue in question that could assist the party with the evidentiary burden (usually, the defence).**
 - Consider all helpful evidence from *both* parties
 - Consider reasonable inferences that could be drawn from evidence
- **Assume [for now!] that all this evidence is true. Could a properly instructed jury find in the party's favour on this issue?**
 - Yes → there is an air of reality; the issue should be considered
 - No → there is no air of reality; the issue need not be considered

Evidentiary Burden

- *Air of Reality* -

CROWN

DEFENCE

{issue}

A
O
R

{issue}

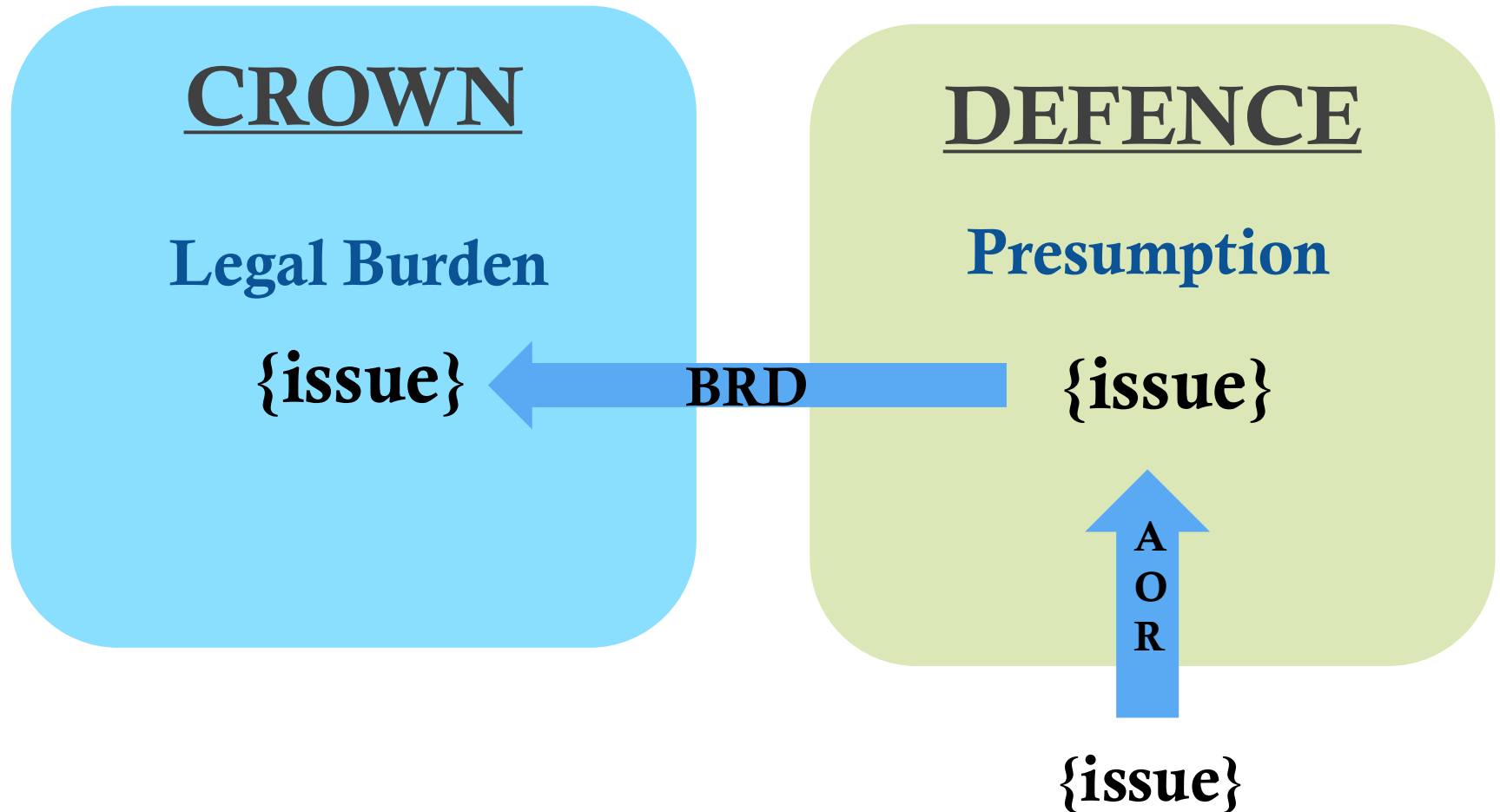
The Air of Reality Test (3/3)

“The test is whether there is evidence on the record upon which a properly instructed jury acting reasonably could acquit.”

“It is trite law that the air of reality test imposes a burden on the accused that is merely evidential, rather than persuasive.”

(R. v. Cinous)

Evidentiary Burden + Legal Burden



Evidentiary Burden + Legal Burden (*where reverse onus*)

